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IN THE FOURTH JUDICIAL DISTRICT COURT OF UTAH COUNTY
STATE OF UTAH

In the matter of the marriage of:

DESTINY ARIEL BRADY (nka Hyte),
Petitioner,

And

JAMES MICHAEL BRADY,
Respondent.

ORDER ON HEARING
(October 21, 2025)

Civil No. 164400524

Judge Derek Pullan

Commissioner Marian Ito

THE ABOVE-ENTITLED matter came before the Honorable Commissioner Marian Ito on October 21, 2025, pursuant to Petitioner's Notice of Intent to Relocate. Each party was present and represented by their respective counsel. The Court having reviewed the pleadings and received information and argument from counsel, being fully advised in the premises, the court finds and recommends the following:

ORDERS

1. The court finds that Ross v. Ross, 2019 UT App 104, controls the issue of relocation given the parties have joint physical custody. The court notes that no Petition to Modify has been filed by Mother at this time.
2. The court finds that it is not in the best interests of the child in this matter to relocate prior to a full adjudication of a modification action.

3. The court orders that if Mother relocates, physical custody will transfer to Father and Mother's parent time shall be governed by Utah Code 81-9-209, including the transportation costs of that statute.
4. The court also orders that if Mother relocates the child may initiate phone calls or virtual parent time as reasonably desired with the parent he is not residing with at that time, and both parties shall encourage the child's contact with the other parent.
5. The court orders that the child remain in his current hybrid home school / Canyon Grove school schedule through the 2025-2026 academic year, unless there is mutual agreement or court order.
6. Neither party shall awarded his or her attorney fees incurred in this relocation action.

THIS IS THE SIGNED ORDER OF THE COURT WHEN SIGNED ELECTRONICALLY BY THE COURT ON THE FIRST PAGE OF THIS DOCUMENT

APPROVED AS TO FORM:

Brian E. Arnold
Counsel for Petitioner

Date

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I personally served a true and correct copy of the foregoing
and any referenced attachments on the 21st day of October 2025, to the following:

Brian E. Arnold
Counsel for Petitioner
arnold@arnoldwadsworth.com
jcarver@arnoldwadsworth.com

Sent via:
☐ Electronic Filing with Court
☐ Mailed (U.S. Mail, postage prepaid)
☒ Email

/s/ Zachary J. Starr
☐ Secretary ☒ Attorney